

Senate Study Bill 3011 - Introduced

SENATE FILE _____
BY (PROPOSED COMMITTEE
ON TECHNOLOGY BILL BY
CHAIRPERSON McCLINTOCK)

A BILL FOR

1 An Act establishing requirements and guidelines for chatbots,
2 making appropriations, and providing civil penalties.
3 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. NEW SECTION. 554J.1 Definitions.

2 For purposes of this chapter:

3 1. "*Chatbot*" means any interactive computer service or
4 software application that does all of the following:

5 a. Produces new expressive content or responses not fully
6 predetermined by the developer or operator of the interactive
7 computer service or software application.

8 b. Accepts open-ended, natural-language, or multimodal user
9 input and produces adaptive or context-responsive output.

10 2. "*Chatbot*" does not include an interactive computer
11 service or a software application described by all of the
12 following:

13 a. The responses of the interactive computer service
14 or software application are limited to information only
15 contained within the interactive computer service or software
16 application, including user input, except for information
17 necessary to make the interactive computer service or software
18 application coherent.

19 b. The interactive computer service or software application
20 is only able to respond to topics in a narrow, specified field.

21 Sec. 2. NEW SECTION. 554J.2 Chatbots — required practices.

22 1. It shall be unlawful for a person to design, develop, or
23 make a chatbot available with the knowledge, or with reckless
24 disregard for the possibility, that the chatbot encourages,
25 promotes, or coerces a user to commit suicide, perform acts of
26 self-injury, or perform acts of physical or sexual violence on
27 humans or animals.

28 2. Each chatbot shall meet all of the following
29 requirements:

30 a. Clearly and conspicuously disclose that the chatbot
31 is a chatbot and not a human being at the beginning of each
32 conversation and at thirty-minute intervals.

33 b. Be programmed to prevent the chatbot from claiming to
34 be a human or respond deceptively when asked by a user if the
35 chatbot is a human.

1 c. Clearly and conspicuously disclose that the chatbot
2 does not provide medical, legal, financial, or psychological
3 services and that the user should consult a licensed
4 professional for such services at the beginning of each
5 conversation and at regular intervals.

d. Be programmed to prevent the chatbot from representing
that the chatbot is a licensed professional, including but not
limited to a therapist, physician, lawyer, financial advisor,
or other professional.

10 Sec. 3. NEW SECTION. 554J.3 Penalties.

11 1. A person found in violation of section 554J.2 shall
12 be fined not more than one hundred thousand dollars for each
13 violation.

14 2. *a.* The attorney general may bring a civil action to
15 enjoin a violation of or enforce compliance with this chapter
16 or rules adopted pursuant to this chapter.

b. In a case brought pursuant to this subsection, the attorney general may seek civil penalties, restitution, or other appropriate relief.

20 3. Penalties collected under this section shall be credited
21 to the general fund of the state and appropriated to the
22 attorney general for the purpose of performing duties under
23 this chapter.

24 Sec. 4. NEW SECTION. 554J.4 Rulemaking authority.

25 The attorney general shall adopt rules pursuant to chapter
26 17A to implement this chapter.

27 EXPLANATION

28 The inclusion of this explanation does not constitute agreement with
29 the explanation's substance by the members of the general assembly.

30 This bill establishes requirements and guidelines for
31 chatbots.

32 The bill defines “chatbot” as any interactive computer
33 service (service) or software application (application)
34 that produces new expressive content or responses not fully
35 predetermined by the developer or operator of the service or

1 application, and that accepts open-ended, natural-language,
2 or multimodal user input and produces adaptive or
3 context-responsive output. The bill also details an exception
4 when a service or application is not a "chatbot".

5 The bill prohibits a person from designing, developing, or
6 making a chatbot available with the knowledge, or with reckless
7 disregard for the possibility, that the chatbot encourages,
8 promotes, or coerces a user to commit suicide, perform acts of
9 self-injury, or perform acts of physical or sexual violence on
10 humans or animals.

11 The bill requires each chatbot to clearly and conspicuously
12 disclose that the chatbot is a chatbot and not a human being at
13 the beginning of each conversation and at 30-minute intervals;
14 be programmed to prevent the chatbot from claiming to be a
15 human or respond deceptively when asked by a user if the
16 chatbot is a human; clearly and conspicuously disclose that
17 the chatbot does not provide medical, legal, financial, or
18 psychological services and that the user should consult a
19 licensed professional for such services at the beginning of
20 each conversation and at regular intervals; and be programmed
21 to prevent the chatbot from representing that the chatbot
22 is a licensed professional, including but not limited to a
23 therapist, physician, lawyer, financial advisor, or other
24 professional.

25 The bill creates a penalty of not more than \$100,000 for each
26 violation of the bill. Penalties collected under the bill are
27 credited to the general fund of the state and appropriated to
28 the attorney general to perform duties under the bill.

29 The bill allows the attorney general to bring a civil action
30 to enjoin a violation of or enforce compliance with the bill
31 and seek civil penalties, restitution, or other appropriate
32 relief.

33 The bill requires the attorney general to adopt rules to
34 implement the bill.